

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL TAYLOR,

Petitioner,

Index No.:

AFFIRMATION

- against -

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, P.O. JOHN DOE
#1 AND P.O. JOHN DOE #2,

Respondent.
-----X

MICHAEL BRAVERMAN, an attorney duly admitted to practice before the Courts of this
State affirms the following under the penalties of perjury:

1. I am a member of the firm of **GETZ & BRAVERMAN, P.C.**, attorneys for
Petitioner herein, and as such am fully familiar with the facts and circumstances
surrounding this matter.
2. I submit this Affirmation in Support of Petitioner's application, pursuant to
General Municipal Law Section 50-e(5), to extend Petitioner's time to serve a notice of
claim upon respondents, THE CITY OF NEW YORK and NEW YORK CITY POLICE
DEPARTMENT.
3. The claim arose on August 2, 2017, when petitioner, **MICHAEL TAYLOR**
was falsely arrested and wrongfully detained for approximately three (3) days without
any justifiable cause and/or provocation and maliciously prosecuted without evidence of
guilt.
4. Petitioner was initially arrested on August 2, 2017 and subsequently thereafter
his case was dismissed on August 7, 2017. The Respondents were more than fully aware of

the Malicious Prosecution and false arrest of the Petitioner. As such, there can be no claim of prejudice. Attached hereto is a copy of the Certificate of Disposition, which shows that Petitioner was arrested on August 2, 2017, under Arrest No.: B17639075.

5. It is integral to note at the outset, that this office was consulted and retained on August 14, 2017, at which time we learned of the incident at issue herein. Annexed hereto is Petition signed by Petitioner stating the facts of his request to file a late Notice of Claim.

6. A proposed Notice of Claim and Affirmation is annexed hereto as Exhibit "A", dismissing case and Criminal Court Complaint, that put City on Notice of this claim are annexed as Exhibit "B". The Notice of Claim details all of the pertinent information which permits the City of New York to thoroughly investigate the claim.

7. It is respectfully submitted that this case satisfies the criterial of General Municipal Law Section 50-e(5) for extending the petitioners' time to serve a Notice of Claim.

8. It is further respectfully submitted that the Court should also consider that the Claimant is a lay person without knowledge of the law. Under these circumstances, it is clear that the respondents have not been prejudiced by the delay in serving a notice of claim, nor will be in any way whatsoever, since respondents are obviously well aware of the circumstances concerning this claim.

9. It is well settled that provisions of Subdivision 5 of General Municipal Law Section 50-e which authorized the Court to extend the time to serve a notice of claim are to be liberally construed, and that the absence of an acceptable excuse is not necessarily fatal. Cico v The City of New York, 98 AD 2d 38, 39 (2nd Dept. 1983); Patterson v.

Town of Hempstead, 104 AD 2d 975 (2nd Dept. 1984). This is particularly so where, as in this case, the respondent can claim no prejudice from the delay in serving a notice of claim.

10. Numerous Courts have held that where claimants sought leave to serve a late Notice of Claim alleging a cause of action similar to the ones sought to be interposed in this matter, the documents generated and maintained by the policing authorities have afforded the public corporations actual knowledge within the requisite ninety (90) days period. In Matter of Mazilli v. City of New York, 115 AD 2d 604 (2nd Dept. 1985), an application to serve a late notice of claim was made more than a year and two months following her arrest. This Court found that the City acquired actual knowledge of the essential facts arising out of petitioner's arrest, "by virtue of the police complaint". There, as here, the public corporation failed to show that it has been prejudiced by the petitioner's delay in serving a formal notice of claim.

In Montalto v. Town of Harrison, 541 AD 2d 652 (2nd Dept. 1989). The plaintiffs claims were premises upon false arrest and malicious prosecution. The Appellate Division held that "in this case, knowledge of the facts underlying the false arrest and imprisonment claim may be imputed to the defendant".Id.

The Respondent did acquire notice of the essential facts of the claim based on the fact that **NEW YORK CITY POLICE DEPARTMENT** was directly involved in all the acts giving rise to the claims. Since the **NEW YORK CITY POLICE DEPARTMENT** was directly involved in the incident, from the initial confrontation with the Petitioner until his release it is almost certain that the **NEW YORK CITY POLICE DEPARTMENT** completed documents relating to this event in the form of arrest

actual notice of the essential facts of the Petitioner's claims.

11. In addition, the First Department has repeatedly held that the "only legitimate purpose served by Section 50(e) is the opportunity for prompt investigation and preservation of evidence of the facts and circumstances of claim asserted against public corporations" Heredia v. City of New York, supra, at 474, Swenson v. City of New York, 126 AD 2d 499 (1st Dept. 1988); Matter of Gerzel v. City of New York, 117 AD2d 549 (1st Dept. 1986).

12. Clearly, under these circumstances, respondents can claim no prejudice if petitioner's application is granted. If the Court grants petitioner's application to extend the time to file a Notice of Claim, it is requested that the proposed notice of claim (Exhibit "A") be deemed to have been timely served, without the necessity for any additional service.

13. Petitioner will be sorely and irreparably prejudiced unless the within application is granted, in that no other means of redress will be available to the claimant herein for the damages he sustained as a result of the accident/incident and the resultant sequella.

15. No previous application for the relief sought herein has been made to any Court or Judge.

WHEREFORE, it is respectfully requested that petitioner's application be granted in all respects.

Dated: Bronx, New York
October 18, 2017



MICHAEL BRAVERMAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MICHAEL TAYLOR,

Petitioner,

Index #:

- against -

AFFIDAVIT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. JOHN DOE #1 and P.O. JOHN DOE #2,

Respondents.

STATE OF NEW YORK)
COUNTY OF BRONX) : ss

MICHAEL TAYLOR, being duly sworn, deposes and says:

I am the Petitioner in the above-entitled matter and submit this affidavit in connection with my false arrest case of August 2, 2017.

1. I **MICHAEL TAYLOR** reside at 116-11 223rd Street, Queens, NY 11411.
Petitioner's attorney **GETZ & BRAVERMAN, P.C.**, 172 East 161st Street, Bronx, NY 10451.

2. While taking the train at West Farms Sq. E Tremont Av Station, Bronx, NY, I was stopped by (2) two Police Officers and was arrested and taken in to custody for questioning.

3. I was subsequently arrested and taken to the 46st precinct. I was then transferred to Central Booking. In total, I was incarcerated for approximately two - three (2-3) days.

5. My case was dismissed on May 3, 2017.

6. I was unaware that I had to file a Notice of Claim within ninety days of the day I was arrested and/ or of the release of my arrest.

8. I sought representation from Getz and Braverman, P.C. on June 9, 2017 after I received a certificate of disposition on August 7, 2017.

9. I respectfully request the Court to allow me to file a late Notice of Claim.



MICHAEL TAYLOR

Sworn to before me this

18 day of October, 2017

NOTARY PUBLIC
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02648030120
Commission Expires 10-27-2017